

Contentious Chamber

Decision 162/2023 of November 30, 2023

File number: DOS-2023-03282

Subject: settlement decision following a complaint regarding cookies on a website of the Belgian Radio and Television of the French Community (website "RTBF")

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, sitting alone;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), (hereinafter "GDPR");

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "LTD");

Considering the Internal Rules as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Ms. X, [...], represented by noyb – European Center for Digital Rights, [...], hereinafter referred to as "the complainant";

The party in settlement:

THE BELGIAN RADIO AND TELEVISION OF THE FRENCH COMMUNITY, with its registered office at [...], represented by Me Peter CRADDOCK, whose office is located at [...], hereinafter referred to as "the party in settlement".

Decision 162/2023 — 2/24

I.

Preliminary procedure for the settlement

I.1. The complaints

1.

On July 19, 2023, the complainant, through her representative, filed a complaint with the Data Protection Authority (hereinafter "DPA") against the party in settlement.

2.

The subject of the complaint concerns several elements related to the implementation of cookies on the website "<https://www.RTBF.be/>" of the party in settlement (hereinafter "the website" or "the disputed site"). The complainant refers to the legislation she deems relevant regarding consent. The complaint mentions "deceptive cookie banners" and "obscure models." The complaint also cites reports and communications from both the European Data Protection Board (hereinafter "EDPB") and the Belgian DPA regarding obligations related to the implementation of cookies involving the processing of personal data.

3.

More specifically, the complainant denounces four alleged practices on the aforementioned website that she finds objectionable. Firstly, the absence of a "reject" option at the first level of information in the cookie banner. Secondly, that the "cookie banner" uses "deceptive button colors." Thirdly, the complaint states that "it is not as easy to withdraw consent as it is to give it." Finally, the fourth grievance of the complainant questions the legality of the "reference to legitimate interest" on the website.

4.

On August 4, 2023, the DPA's Frontline Service (hereinafter "SPL") contacted the complainant to

request information "regarding the complainant's interest in filing the complaint." Subsequently, exchanges took place between the complainant's representative and the SPL regarding this matter.

5.

On August 25, 2023, the complaint was declared admissible by the SPL under Articles 58 and 60 of the LCA and was transferred to a file in the Contentious Chamber under Article 62(1) of the LCA.

6.

On September 1, 2023, the complainant's representative sent a document to the SPL explaining in more detail the complainant's interest.

1 During the procedure, it was mentioned that the complaint was initially filed on July 18, as indicated in the complaint submitted by the complainant herself. However, it should be noted that the complaint did not officially reach the DPA until the following day.

2 In particular, Article 10/2 of the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, M.B. 05/09/2018 (implementing provisions of the "e-Privacy directive") and Article 6.1.a. of the GDPR.

3 In accordance with Article 61 of the LCA, the Contentious Chamber informs the parties that the complaint has been declared admissible.

4 In accordance with Article 95 §2 of the LCA, the Contentious Chamber informs the parties that the file has been transmitted to it following this complaint.

Decision 162/2023 — 3/24

7.

In the document dated September 1, 2023, the representative of the complainant refers to the admissibility conditions set out in the LCA - which the complaint meets - and states that "the reason why the frontline service of your authority is requesting additional justification of the complainant's interest in filing complaints is not clear to [the representative]." The representative emphasizes that the complainant's data has indeed been processed and that the complainant is a data subject within the meaning of the GDPR.

8.

As part of an efficient procedure, the Contentious Chamber does not further pursue the examination of aspects related to the complainant's interest that have already been addressed in communications between the complainant's representative and the SPL.

I.2. The Transaction Proposal

9.

On September 21, 2023, the Contentious Chamber sends a letter to the representative of the complainant and to the party in the transaction, informing them of its intention to propose a transaction, in accordance with Article 95, § 1, 2° of the LCA. The notification also mentions that the Contentious Chamber - through this communication - considers that the deadline for appealing to the Inspection Service under Article 96, § 1 of the LCA is interrupted. From this moment on, the parties also have the opportunity to consult the administrative file, a request they both subsequently make.

10.

On October 20, 2023, the transaction proposal is transmitted to the party in the transaction and to the complainant. The content of this transaction proposal is fully reproduced in the annex of this transaction decision and forms an integral part thereof.⁵ In particular, this transaction proposal includes all conditions - both procedural and substantive - as well as the deadlines to which the parties must respectively respond.

I.3. The Complainant's Response

11.

On October 30, 2023, the representative of the complainant sends a letter to the Contentious Chamber. On November 3, 2023, the representative of the complainant also transmits the letter to the party in the transaction, as it was not clear to him that he should also provide it to the party in the transaction.

12.

In his response to the transaction proposal, the complainant requests clarifications and/or adjustments

on several “points.” The complainant concludes with the following paragraph: “The complainant emphasizes that if the content of the transaction proposal is modified in favor of the defendant party [party in the transaction] or if the aforementioned requests of the complainant are not satisfied (in their entirety), the complainant will be forced to appeal the formal transaction decision.”

13.

The Contentious Chamber reiterates - in the interest of decision clarity - the requests of the complainant set out in Section II of this decision, and then the Contentious Chamber responds in concreto to the requests.

14.

On November 6, 2023, the Contentious Chamber responds by confirming that the transaction proposal will not be modified in accordance with the requests of the complainant. However, the Contentious Chamber specifies that it intends to publish the decision without omitting the identifying data of the party in the transaction, in accordance with Article 95, §1, 8° of the LCA.

I.4. The Requests of the Party in the Transaction and the Conclusion of the Transaction

15.

On November 14, 2023, the representative of the party in the transaction requests an additional week for their response. This extension (of 7 days) is granted by the Contentious Chamber on November 15, 2023.

16.

On November 23, 2023, the party in the transaction confirms that it accepts the transaction proposal “without prejudicial acknowledgment, and commits to implementing the 4 conditions [...]”. On November 24, 2023, the Contentious Chamber confirms that the notification from the party in the transaction formalizes the conclusion of a transaction, thus resulting in this transaction decision.

II. Conditions of the Transaction and Grounds for Rejecting the Complainant's Requests

II.1. General Considerations

17.

During the transaction procedure, no modifications were made to the terms of the transaction as stated in the transaction proposal. These terms remain fully valid under the transaction. Although they are not repeated in this section, they are annexed to this decision.

18.

The Contentious Chamber further specifies that the acceptance of a transaction proposal shall in no case be interpreted as an admission of guilt, and therefore cannot be used as an aggravating circumstance to determine sanctions in future proceedings before the Contentious Chamber.

19.

The Contentious Chamber specifies that, in the interest of proper procedure, the transaction procedure is divided into two distinct stages, namely the transaction proposal.

Decision 162/2023 — 5/24

on the one hand, and the settlement decision on the other hand. This clear division allows all parties involved to precisely understand the starting and stopping points of the procedure, while retaining the possibility to appeal at each stage through the inclusion of appeal clauses. This approach also aims to promote transparency in the settlement process, a principle to which the Contentious Chamber fully adheres.

20. Finally, this decision is a prima facie decision made by the Contentious Chamber in accordance with Article 95 of the LCA based on the complaint filed by the complainant, within the framework of the "preliminary procedure prior to the decision on the merits"⁶ and not a decision on the merits of the Contentious Chamber within the meaning of Article 100 of the LCA.

II.2. Requests of the complainant rejected

21.

The complainant made several requests to the Contentious Chamber, which did not result in a modification of the settlement proposal. However, the Contentious Chamber will proceed with the publication of this settlement decision on the website of the Data Protection Authority (see section III of this decision), in accordance with the complainant's request, which constitutes a distinct decision from the settlement under Article 95, §1, 8° of the LCA.

22.

The Contentious Chamber outlines below the reasons why the other requests are not upheld. It should be noted that these reasons are integrated into this decision, so they clearly fit within the framework of the generally established procedural economy.

23.

First, regarding the first condition of the settlement proposal, the complainant requests "[to] explicitly add to the first condition of the settlement proposal that this condition means that the 'refuse all' option must be provided on the same, first 'layer' as the 'accept and close' option."

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The Contentious Chamber rejects this request for the following reason. It is not clear how this request would lead to a different concrete outcome on the disputed site compared to the current wording of the first and fifth conditions. The Contentious Chamber believes that the proposed modification would not improve the stipulated condition (cf. section c.1. of the settlement proposal).

24.

Second, regarding the second condition, the complainant requests "[to] explicitly add to the second condition of the settlement proposal that the display 'no less (visually) appealing' includes, but is not limited to, the fact that the 'refuse all' option and the 'accept and close' option must have the same size, color, shape, contrast, and location of the button/option."

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The Contentious Chamber rejects this request for the following reason. It is neither for the Contentious Chamber nor for the complainant to determine that the buttons must have (exactly) the same characteristics. This choice belongs to the data controller. It is true that buttons with exactly the same characteristics are clearly identical for the purposes of consent. Conversely, it is not excluded that the data controller decides to make the 'refuse all' option more appealing or to innovate in the use of colors (which, for example, display essentially equivalent options) in order to facilitate the choice of the data subject. The condition formulated more generally in the settlement proposal regarding the display "no less (visually) appealing" is therefore sufficient for the Contentious Chamber.

25.

Third, regarding the third condition, the complainant proposes the following text modification:

"The defendant commits to develop and implement, within one month, a mechanism on the website 'https://www.RTBF.be/' that complies with the requirements defined in the aforementioned policy documents, aiming to achieve an equivalent outcome. The data controller also guarantees that the procedure for revoking consent (withdrawing consent) will not require more steps (in terms of 'clicks') than those required to give consent. A permanently visible and visually identifiable option must be available on all pages of the website to reopen cookie settings with a single click. The same number of steps for withdrawing consent will be counted from the moment the end user reopens the cookie settings. This will be done by following an equivalent number of steps from the moment the end user reaches the cookie settings page, which must be clearly accessible from all pages of the website in question. All technical modifications made by the defendant for this purpose must be recorded in a summary document, which will be prepared during implementation and transmitted to the Contentious Chamber and the complainant. The implementation of these technical modifications, as well as the preparation and transmission of the summary document, must be completed within one month from the settlement decision." (The underlined part is not included in the current proposals)

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The Contentious Chamber fully rejects this request for modification of the condition for the following reason. The Contentious Chamber takes note of the complainant's viewpoint that they wish for a "permanently visible option and...

Decision 162/2023 — 7/24

"visually identifiable" on all web pages of the disputed site. The Contentious Chamber, seeking to reach a reasonable and technically feasible settlement with the transaction, considers that it is not appropriate to require such modifications as part of a settlement.

26.

Fourthly, the complainant requests that an "injunction to cease illegal processing" be added to the

settlement, which should be worded as follows:

"The responsible party commits to delete all personal data processed due to cookies that were not placed in accordance with the content of this formal settlement decision on the website 'https://www.RTBF.be' and to communicate this obligation to delete to all recipients to whom the personal data has been provided in this context. Proof of the deletion of personal data and the communication of this obligation to delete personal data to all recipients will be recorded in a summary document at the time of implementation and transmitted to the Contentious Chamber and the complainant. The deletion of personal data and the communication of this obligation to delete personal data to all recipients, including the preparation and transmission of the document, must take place within one month after the formal settlement decision has been made."

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The Contentious Chamber rejects this request for the following reason. Based on the available elements in the administrative file, the complainant has not approached the data controller regarding the alleged violation of their rights. The Contentious Chamber therefore considers that it is not appropriate, in this case, to propose such a condition, let alone to issue an order regarding this to the party in settlement. The complainant is of course free to approach any data controller regarding whom they can exercise their rights under the applicable legislation.

27.

Fifthly, the complainant requests the imposition of an administrative fine as part of the settlement "in light of Article 83, paragraph 1, of the GDPR."

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The Contentious Chamber rejects this request for the following reason. The imposition of an administrative fine is a competence that can be exercised by the Contentious Chamber under Article 100, §1, 13° of the LCA. In this sense, no administrative fine as requested by the complainant can be imposed at this stage before the substantive processing under Article 95 of the LCA. It is true that Article 107 of the LCA indicates that the legislator wished for settlements—without specifying whether this can also be done under Article 95 of the LCA—to also allow for the collection of sums of money, but this is not a condition of the settlement instrument, as the Contentious Chamber has already indicated in the settlement proposal. The settlement aims to achieve a general resolution of the complainant's grievances, without the need for it to be sanctioned. The Contentious Chamber emphasizes the efficiency of the process in this regard.

28.

Sixthly, the complainant requests that the settlement decision "will also include the fact that the responsible party [party in settlement] waives any civil or other claims related to the formal settlement decision, for example, but not limited to, the possibility of negative publicity regarding this formal settlement decision."

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The Contentious Chamber rejects this request for the following reason. This is not an essential request in light of the grievances raised by the complainant in their complaint.

29.

Seventhly, the complainant requests that the settlement decision be published on the website of the Data Protection Authority.

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The Contentious Chamber can grant this request, through Section III of this decision.

III. Publication of the Decision

30. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this settlement decision is published on the website of the Data Protection Authority.

However, it is not necessary for this purpose that the identification data of the complainant be directly communicated, as they are not relevant.

31.

However, the Contentious Chamber chooses to publish the names of the complainant's representative and the party in settlement. Indeed, it is in the public interest that citizens can be informed, in the most transparent manner possible, about settlement procedures that lead to (visual) changes on frequently

visited websites, such as the disputed site. Indeed, journalistic publications on these websites are inherently aimed at a wide audience, and visitors to these sites have an interest in being informed about data protection-related aspects. For the sake of completeness, the Contentious Chamber emphasizes that the representative of the complainant themselves has publicized the complaints.
Decision 162/2023 — 9/24

In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed, within a period of thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant. Such an appeal may be introduced by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS
President of the Litigation Chamber

7 The application must contain under penalty of nullity:

- 1° the indication of the day, month, and year;
- 2° the name, first name, and domicile of the applicant, as well as, where applicable, their capacity and national register number or business number;
- 3° the name, first name, domicile, and, where applicable, the capacity of the person to be summoned;
- 4° the subject and a brief summary of the grounds of the application;
- 5° the indication of the judge who is seized of the application;
- 6° the signature of the applicant or their lawyer.

8 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry.

FOR THESE REASONS,

The Litigation Chamber of the Data Protection Authority decides:

- under Article 95, § 1, 2° of the LCA, to validate the transaction as accepted by the party in transaction on November 23, 2023, subject to the conditions set and specified in this decision and its annex.

Decision 162/2023 — 10/24

Annex – transaction proposal

Decision 162/2023 — 11/24

Your references

Our references

Annex(es)

Date

NOYB: C-062-15

DOS-2023-03282

1

20/10/2023

Subject: Application of Article 95, § 1, 2° of the LCA - Transaction proposal in the complaint file of Ms. X regarding the use of cookies by RTBF

Dear Sir/Madam,

The Litigation Chamber first refers to the letter it previously sent to the defendant and the complainant, informing them of its intention to send a transaction proposal in the ongoing case. This document contains the said transaction proposal. Given the significant volume of cases awaiting examination by the Litigation Chamber, which results in considerable delays for the processing of all cases, the Litigation Chamber has decided, under Article 95, § 1, 2° of the law establishing the Data Protection Authority (hereinafter "LCA"), to explore the possibility of a transaction proposal.

9 Registered letter dated September 21, 2023.

10 M.B., January 10, 2018.

Litigation Chamber

BY EMAIL

To: The Belgian Radio and Television of the French Community ("RTBF")

[...]

Having as counsel Mr. Peter Craddock

whose office is located [...]

via the email address: [...]

Defendant

BY EMAIL

To: NOYB – European Center for Digital Rights,

representing Ms. X

via the email address [...]

Complainant

Secretariat

T: +32 (0)2 274 48 56

E-mail: litigationchamber@apd-gba.be

Decision 162/2023 — 12/24

transaction in the case referred to in the subject line ("transaction proposal") through this letter.

Furthermore, the Contentious Chamber takes into account the fact that it is currently dealing with a large number of complaints regarding cookies. Although the issue of "cookies" is a priority of the Data Protection Authority, the Contentious Chamber must exercise careful selection of the cases to be handled in order to ensure that it can address various matters relevant to society with the required diligence. In this regard, the Belgian legislator has emphasized the need for the Contentious Chamber to be able to act selectively in order to ensure an effective implementation of its powers.

This transaction proposal is made without any prejudicial acknowledgment and does not bind the Contentious Chamber regarding any position it may adopt in the event of a refusal of said proposal. If the party to whom this transaction proposal is addressed expressly refuses it, the Contentious Chamber will continue the procedure. In the event of findings of violations, the Contentious Chamber will be able to exercise the sanctioning powers provided for by European and Belgian law.

In this case, the Contentious Chamber retains the possibility of pursuing the matter otherwise in the event of a refusal of the proposal or if it is withdrawn by the Contentious Chamber itself.

If the party to whom the transaction proposal is addressed expressly refuses this proposal, the Contentious Chamber will continue the procedure on the merits and will handle the case otherwise than through a transaction.

a) Procedural situation of the transaction proposal

The transaction proposal presented here falls within the framework of the "preliminary procedure prior to the substantive decision" before the Contentious Chamber, as envisaged by the legislator. Therefore, the Contentious Chamber does not take a position here and now regarding the necessity of investigative measures conducted by the Inspection Service of the DPA nor on the question of the necessity to subsequently pursue the case in accordance with the provisions of Article 95 of the LCA.

11 See the press release from the Data Protection Authority on this subject, accessible via:

<https://www.autoriteprotectiondonnees.be/lapd-definit-ses-priorites-pour-lannee-2023>.

12 The House of Representatives, Explanatory Memorandum in the draft law establishing the Data

Protection Authority, Doc. 2648/001 (Session of the 54th legislature), available via: <https://www.dekamer.be/kvvcr/showpage.cfm?section=/flwb&language;=fr&cfm;=/site/wwwcfm/flwb/flwbn.cfm?lang=N&legislat;=54&dossierID;=2648, 51>; see also: E. Degraeve, "Title 11. Control Authority" in C. DE TERWANGNE and K. ROSIER, *The Regulation on Data Protection (GDPR) – 1st edition*, Larcier, 2018, (593)607: "[The control authority] can thus exercise its control missions and assess the follow-up to be given to any complaints that are addressed."

13 See Article 58 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

14 See also Article 100 of the LCA.

15 See section 6.3.2. and Articles 94-97 of the LCA.

16 Cf. Article 94, 1° and 2° of the LCA; also compare the following paragraph in the notification letter dated 21/09/2023 to the parties: "This notification interrupts the 30-day period as referred to in Article 96, § 1 of the LCA for referring to the Inspection Service until the moment when the Contentious Chamber finds that the transaction proposal does not lead to or cannot lead to a genuine transaction." Decision 162/2023 — 13/24

Given the nature of the proceedings before the Litigation Chamber of the Data Protection Authority, it should be emphasized that the "transaction" provided for in Article 95, §1, 2° of the LCA cannot be equated with a "transaction" in the sense of criminal law.¹⁷ Indeed, the transaction in the sense of the LCA has a *sui generis* character.

Furthermore, the Litigation Chamber mentions the specific facts, situating them in time and space, on the basis of which the transaction proposal is made (*infra*). Although, as previously specified, the Litigation Chamber does not rule *hic et nunc* on the existence of violations, it must, however, formulate the transaction proposal based on elements presented in the file. These are the elements perceived as offensive by the complainant. The transaction proposal thus concerns the facts, the period, and the context (technical), with facts not covered by this period and context not being included in the transaction.¹⁸ The disputed period only concerns the timeframe between the date of the complaint and the date of the formal transaction decision following this transaction proposal.

In general, the Litigation Chamber frames the transaction procedurally as follows:

1.
The transaction provided for by the LCA is a transaction between:
 - on the one hand, the Litigation Chamber, which commits to ending the proceedings, renouncing, among other things, the potential imposition of corrective measures,
 - and, on the other hand, the defendant, who commits to paying a sum and/or complying with certain conditions.
2. A transaction generally implies an acknowledgment of the facts by the party negotiating, but it is not an acknowledgment of a violation of the law in force.
3. The scope of the transaction is in all cases limited to the facts and deadlines expressly mentioned in the transaction proposal or the (decision of) transaction itself.
4. The complainant is heard when concluding any transaction following a complaint.¹⁹ The complainant is heard regarding their viewpoint on the use of the transaction instrument and on the content of the transaction proposal. The complainant has the opportunity to express their position on the transaction proposal no later than 14 days after having received it. This deadline does not exclude the possibility for both parties to obtain clarifications regarding the transaction proposal in writing or orally (*infra*).
5. The transaction is formalized by a transaction decision, which transparently outlines the course of the procedure leading up to the transaction and explicitly includes the terms of the transaction proposal as well as the terms of the transaction ultimately negotiated (generally referring to the transaction

proposal annexed to the final transaction decision).

6. All concerned parties retain the right to comment, generally in writing, on the transaction proposal and its content.

7. A transaction that is not accepted or otherwise unsuccessful does not affect the continuation of the case and has no impact on any potential alternative handling of the case.

b) Substantive conditions of the transaction proposal.

b.1. Complaint against “www.rtbef.be” dated July 18, 2023

b.1.1. First grievance of the complainant in their complaint dated July 18, 2023

The first grievance of the complainant is described by the complainant as follows: “Type 1 violation: no ‘refuse’ option at the first level of information of the cookie banner.”

In support of this grievance, the complainant attaches the following two screenshots:

1.

Complaint, Annex 2:

Decision 162/2023 — 15/24

2. Complaint, Annex 3:

Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

1.

The viewpoint of the working group of the European Data Protection Board (“EDPB”)²⁰ and the press release²¹ from the DPA on this matter.

An excerpt from the press release:

The absence of a “reject all” button at the same level as the “accept all” button. The majority of data protection authorities, including the DPA, have considered this to be a shortcoming and that a user of a website should be able to access the option to consent to or refuse the deposit/read of cookies on their device simultaneously.

2. The DPA’s “cookie checklist”²²:

I do not foresee a button “accept all cookies” (or similar) without providing at the same “level” a button “reject all non-essential cookies” (or similar)

First condition of the transaction proposal:

²⁰ In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

²¹ Press release from the DPA, February 10, 2023, accessible here: <https://www.auditoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

²² You will find, attached to this transaction proposal, a copy of this “cookie checklist”; the document is also accessible via the DPA’s website:

<https://www.auditoriteprotectiondonnees.be/publications/checklist-cookies.pdf>.

Decision 162/2023 — 16/24

The defendant shall provide on the RTBF website a “reject all” option at the location currently indicated as “accept and close,” within one month from the date of the transaction decision, or implement an equivalent practice within the same timeframe. The technical adjustments made by the defendant for this purpose will be recorded in a summary document at the time of implementation and transmitted to the Litigation Chamber and the complainant. The technical implementation, as well as the preparation and transmission of the document reflecting the implementation, must be completed within one month from the transaction decision.

b.1.2. Second grievance of the complainant in their complaint dated July 18, 2023

Second grievance of the complainant: "Type 2 Violation: Misleading Button Colors"

In support of this grievance, the complainant attaches the following two screenshots:

1.

Complaint, Annex 2:

2. Complaint, Annex 3:

Decision 162/2023 — 17/24

Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

1.

The viewpoint of the working group of the European Data Protection Board ("EDPB")²³ and the press release²⁴ from the DPA on this matter.

An excerpt from the press release:

Misleading design. The task force drew attention to various types of misleading practices in terms of the layout of the banner.

An excerpt from the report of the EDPB working group:

To assess the compliance of a banner, a case-by-case check must be performed to ensure that the contrast and colors used are not manifestly misleading to users and do not lead to involuntary and thus invalid consent on their part. Consequently, it was also agreed that a case-by-case analysis would be necessary to address specific cases, although some examples of features manifestly contrary to the provisions of the directive on privacy and electronic communications have been identified.

2. The DPA's "cookie checklist":

I do not use techniques that could be classified as "deceptive design"²⁵ (e.g., encouragement through the use of color).

Second condition of the transaction proposal:

The defendant commits that the option behind which a "reject all" option is hidden – following the potential acceptance of condition 1 of this transaction proposal – is not less (visually) appealing than the partial acceptance or

²³ In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

²⁴ Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

²⁵ See also our press release, available via the following link: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/24/deceptive-design-patterns-comment-les-reconnaitre-et-les-eviter-sur-les-reseaux-sociaux>.

Decision 162/2023 — 18/24

total installation of cookies that are not strictly necessary, within one month from the transaction decision.

The technical adjustments made by the defendant for this purpose will be recorded in a summary document at the time of implementation and transmitted to the Litigation Chamber and the complainant. Both the technical implementation and the preparation and transmission of the document reflecting the implementation will be carried out within one month from the transaction decision.

b.1.3. Third complaint of the complainant in their complaint dated July 18, 2023

Third complaint of the complainant: "Type 3 violation: It is not as easy to withdraw consent as it is to give it"

In support of this complaint, the complainant attaches the following screenshot:

Complaint, Annex 4:

Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

1.
The viewpoint of the working group of the European Data Protection Board (“EDPB”)²⁶ and the press release²⁷ from the DPA on this matter.

26 In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

27
Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

Decision 162/2023 — 19/24

An excerpt from the report of the EDPB working group:

In addition to the requirements for the collection of consent to be valid in accordance with the GDPR and under Article 5, paragraph 3, of the ePrivacy Directive, three additional cumulative conditions are mandatory (i) the possibility to withdraw consent, (ii) the ability to withdraw consent at any time, (iii) withdrawal of consent must be as easy as giving consent.²⁸

2. The DPA’s “cookie checklist”:

I foresee a mechanism by which it is as easy to withdraw consent as it is to give it, such as by placing a clearly visible link or button allowing the management of cookie settings and withdrawal of consent with a single click;

I ensure that this withdrawal of consent has the desired effect and that the cookies in question are not simply no longer deposited in the future.

I ensure that this withdrawal of consent has the expected effect and that it does not merely result in the cookie no longer being placed in the future;

Third condition of the transaction proposal:

The defendant party commits to develop and implement, within one month, a mechanism on the RTBF website that complies with the requirements defined in the aforementioned policy documents, aiming to achieve an equivalent outcome. The data controller also guarantees that the procedure for revoking consent (the withdrawal of consent) will not require more steps (in terms of “clicks”) than those required to give consent. This will be done by following an equivalent number of steps from the moment the end user reaches the cookie settings page, which must be clearly accessible from all pages of the website in question. All technical modifications made by the defendant party for this purpose must be recorded in a summary document, which will be prepared during implementation and transmitted to the Litigation Chamber and the complainant. The implementation of these technical modifications, as well as the preparation and transmission of the summary document, must be completed within one month from the transaction decision.

b.1.4. Fourth complaint of the complainant in their complaint dated July 18, 2023

Fourth complaint of the complainant: “Type 4 violation: Reference to legitimate interest”

In support of this complaint, the complainant attaches the following screenshot:

Complaint, Annex 2:

Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

1.
The viewpoint of the working group of the European Data Protection Board (“EDPB”)²⁹ and the press

release³⁰ from the DPA on this matter.

29 In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

30

Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

Decision 162/2023 — 21/24

An

excerpt

from

the

press

release

of

the

Data Protection Authority (DPA):

Legitimate interest. Some websites rely on legitimate interest, rather than consent, for data processing subsequent to the placement or reading of cookies. The report reminds that legitimate interest cannot serve as the legal basis for the placement of cookies themselves, and that if the placement or reading of cookies is not compliant with the ePrivacy Directive, the subsequent processing that results cannot be compliant with the GDPR.

2. The DPA's "cookie checklist":

- a. I have checked the categorization of "essential technical cookies"³¹ (such as those for load balancing);
- b. I have checked the categorization of "strictly necessary functional cookies" (such as cookies for temporarily storing language choice, cookie preferences, or cart content). This includes only cookies that are strictly necessary to provide a service³² explicitly requested by the "visitor";
- c. I have ensured that no other cookies than those above are placed without obtaining prior valid consent from the "visitor".

Fourth condition of the settlement proposal:

The defendant commits to using legitimate interest as a legal basis only in the case of placing strictly necessary technical or functional cookies. The defendant also ensures that the associated display to the website visitor meets transparency requirements, and therefore does not engage in practices involving the use of techniques that could be classified as "deceptive design"³³ - also note that the complaint in this case generally addresses

31 Article 10/2, § 2 of the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data ("framework law"): "the technical storage of information or access to information stored in the terminal equipment of a subscriber or end user, for the sole purpose of carrying out the transmission of a communication over an electronic communications network" (emphasis added).

32 In principle, this does not include visitor counting; see also page 10 of Opinion 04/2012 of the Article 29 Working Party on Data Protection: https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2012/wp194_en.pdf "While they are often considered as a 'strictly necessary' tool for website operators, they are not strictly necessary to provide a functionality explicitly requested by the user (or subscriber). In fact, the user can access all the functionalities provided by the website when such cookies are disabled."

Some controllers (in other Member States) adopt the position that the placement or obtaining access to such cookies - under certain strict conditions - falls outside the requirement for consent. This is

sometimes the result of an adaptation of national legislation (this exception has then been explicitly added), sometimes of national case law.

33 See also our press release, available via the following link: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/24/deceptive-design-patterns-comment-les-reconnaitre-et-les-eviter-sur-les-reseaux-sociaux>.

Decision 162/2023 — 22/24

misleading cookie banners and "dark patterns."³⁴ When the website visitor does not give consent to the installation of a particular cookie - for cookies requiring consent - the defendant commits not to invoke legitimate interest to continue installing these cookies. To this end, the data controller prepares a document, at the time of the technical implementation of this (these) adaptation(s), showing the display of the cookies that it still (potentially) places on the visitor's device at that time based on legitimate interest. This document is then transmitted to the Contentious Chamber and the complainant. The implementation, including the preparation and transmission of the document, must take place within one month after the settlement decision has been made.

Written and oral exchanges with the parties

c.1. Written exchanges

The settlement proposal marks the starting point of the settlement procedure. However, the terms of this proposal may be clarified or adjusted during the settlement procedure, particularly if these adjustments lead to improvements regarding data protection legislation. Such requests do not automatically lead to an extension of the deadline.

In principle, the parties submit their requests in writing to the Contentious Chamber if they deem it necessary to make adjustments to the terms of the settlement proposal. It is up to the Contentious Chamber to make adjustments to the settlement proposal based on the communications from the parties.

In this sense, a constructive attitude from the parties is encouraged. The Contentious Chamber expects the requests to be reasonable and proportionate. When, in the opinion of the Contentious Chamber, the requests suggest that a settlement is unlikely or improbable, this could lead to the withdrawal of the settlement proposal.

c.2. Oral exchanges

34 Compare the documents of the Authority listed in section b.1.2.

Decision 162/2023 — 23/24

To facilitate the efficient conduct of the settlement procedure, the parties have the option to request an oral discussion regarding the settlement proposal. It is important to note that this option is offered as a "favor" and that the Litigation Chamber proposes it in order to ensure the efficiency of the procedure.³⁵

A record will be drafted at the conclusion of the oral discussion, generally for the purpose of simply noting that the oral explanation took place.

Both parties are free to participate in the oral discussions organized by the Litigation Chamber. It is essential to emphasize that these discussions are confidential, and consequently, the content of the discussions may not, under any circumstances, be disclosed to third parties.

c) Deadline

RTBF has 30 days from the receipt of this settlement proposal to indicate whether it accepts it or not. The (representative of the) complainant has the opportunity to express their opinion on the initial settlement proposal and the conditions arising therefrom within 14 days from the receipt of this letter.

d) Existence of other data controllers and/or subcontractors

This settlement proposal is addressed solely to RTBF. It does not address the question of whether other parties may be responsible for the potential violations that led to this settlement proposal, nor to what extent.

e) Validation of the settlement

If the settlement proposal results in a formal settlement decision due to the explicit acceptance or the failure to respond by the party to whom it is addressed within the aforementioned deadline, an appeal may be filed by the "aggrieved party."³⁶

35 Engaging in discussions aimed at reaching a settlement is a well-known legal practice in the landscape of regulators, particularly compare the procedure before the Belgian Competition Authority in Articles IV.55 and following ("Sub-section 4 - Settlement Procedure") of the Economic Law Code of 28/02/2013 (B.S. 29/03/2013) and the mention of such discussions in this code.

36 In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed within thirty days from the explicit acceptance or the absence of response within the aforementioned deadline, with the Market Court (Brussels Court of Appeal), with the Data Protection Authority as the defendant.

Such an appeal may be filed by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

Decision 162/2023 — 24/24

It is important to note that the final settlement does not limit the rights of individuals who may be affected [ERRATUM] to claim damages before a civil court based in particular on Article 82 of the GDPR.

f) Appeal against the settlement proposal

In accordance with Article 108, § 1 of the LCA, an appeal against this decision which results in proposing a settlement may be filed within thirty days from its notification, with the Market Court (Brussels Court of Appeal), with the Data Protection Authority as the defendant.

Such an appeal may be filed by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code³⁷. The interlocutory application must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code³⁸, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

Please accept, Madam, Sir, the assurance of my highest consideration.

Hielke Hijmans

President of the Litigation Chamber

37 The application contains under penalty of nullity:

7° the indication of day, month, and year;

8° the name, first name, residence of the applicant, as well as, where applicable, their qualifications and their national register number or business number;

9° the name, first name, residence and, where applicable, the capacity of the person to be summoned;

10° the subject and a brief summary of the grounds of the application;

11° the indication of the judge who is seized of the application;

12° the signature of the applicant or their lawyer.

38 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.